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How Elected Judges Respond to the
Racial Composition of their
Constituencies

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How Elected Judges Respond to the Racial Composition of their Constituencies

Aleksandar Tomic and Rey Hernández Julián

Abstract

This study takes advantage of the variation in the judicial selection system—some judges are appointed, while others are elected—to address how the racial composition of a district affects sentencing. Controlling for characteristics of the crime and the defendant, the sentence length of an African American before an elected judge is inversely related to the percentage of that district's population that is African American. When the judge is appointed or when the defendant is not African American the relationship is insignificant.

KEYWORDS: discrimination, judicial selection, sentencing

I Introduction

That race matters in the courtroom comes as no surprise. The relationship between the defendant's race, *ceteris paribus*, and the probability of incarceration and the length of sentence has been studied in depth (Bushway and Piehl 2001). Even the race of the judge has been shown to affect a defendant's outcome (Schazenbach 2005). However, no paper has yet examined how the race of the defendant's community is related to the incarceration or sentence of a defendant. This relationship could depend on several factors, particularly the mechanism of judicial selection. An elected judge may be more sensitive to his constituents' characteristics than an appointed judge.

This study estimates the relationship between the percent of a district's population that is of the defendant's race and the length of that defendant's sentence. Since some judges are elected and others are appointed, one group serves naturally as a treatment group and another as a control. To the extent that the racial composition of the population should matter, the elected judges are the ones who should be responsive. Appointed judges, facing no elections or direct accountability to the population, should not respond as strongly, and serve as a comparison group. Appointed judges are generally selected state-wide and report to the state government; as such they should be less sensitive to local characteristics (though possibly more sensitive to the characteristics of the state legislature).

The estimation focuses on the percentage of a county that is African American on the length of sentence of African Americans. It is likely that any relationship would be stronger here because judicial discrimination has historically been most prevalent against African Americans (Dilulio, 1994). They are over-represented in the courts (48.9 percent of state prison populations and 31.1 percent of federal prison populations while 20 percent of the population in large urban areas), drawing more attention to their presence

both by judges and by voting blocks. As an additional comparison, we examine whites and all other races.

We use data from the *State Court Processing Statistics 1990, 1992, 1994, 1996, and 1998: Felony Defendants in Large Urban Counties*. The data include adjudication and case information on all filings that take place in the month of May of the recorded year. We combine these data with Shepherd's (2002) demographic information for each county, which includes the number of arrests by category of crime and racial composition. A county's method of judicial selection is publicly available American Judicature Society's "Judicial Selection in the States: Appellate and General Jurisdiction Courts" (2004).

The data is used to estimate a two-stage Heckman regression. The first stage estimates the probability of the defendant becoming incarcerated, while the second stage estimates the length of the defendant's sentence. Both stages control for the characteristics of the case and of the defendant. The first stage, in addition, controls for additional variables of the defendant's status, as well as the degree to which local jails are overcrowded.

In these regressions, the variable of interest is the percentage of the population in the district that is of the defendant's race. Its coefficient estimates how sentences are related to the racial composition of a particular jurisdiction. The regressions are estimated separately for elected and appointed judges.

African Americans facing an elected judge receive shorter sentences as the percentage of the African American population in their district rises. The probability of incarceration, however, is unaffected. The relationship is unresponsive to the population when the African American defendant faces an appointed judge. The relationship is insignificant for defendants who are white or of other races. This finding suggests that

judicial selection has real consequences upon the outcomes of judicial proceedings. Elected judges give shorter sentences as the percentage of the population that is black increases. The magnitude of the relationship is large: a unit increase in the percentage that is African American diminishes the sentence by 0.435 of a month (or about 13 days). A one standard deviation increase in the percentage of a jurisdiction's population that is African American is associated with a decrease in the defendant's sentence of almost 6 months.

II Background

The Leadership Conference on Civil Rights reports that “criminal laws...are enforced in a manner that is massively and pervasively biased” (Welch and Angulo, 2000). If the US suffers from racial bias in the enforcement of its laws, that bias could stem from several sources. One potential source is that the laws may be written in a way that punishes some races more harshly than others, as in crack-cocaine laws. Another would be that judges consistently impose longer sentences on some races than on others as a response to the characteristics of their constituencies. This paper attempts to estimate the degree to which judges the latter affects the length of sentences on African Americans in the United States.

This study requires that judges have some discretion, and that they be able to use it. Previous research “has consistently established that when judges have discretion, they indulge personal policy preferences to some extent” (Schazenbach, 2005). For instance, Bushway and Piehl (2001) state that “African Americans have 20 percent longer sentences than whites, on average, holding constant age, gender, and recommended sentence length from the guidelines.” Some of this variation may stem from African

Americans' being more likely to be sentenced for crimes that leave more room for discretion by the judge.

The relationship between race and sentencing has been studied extensively. Dozens of papers analyze the effect of the defendant's race, while others look at the race of the judge (Daly and Tonry (1997), Wolfgang and Riedel (1973), Mustard (2001), and Schazenbach (2005)) or the race of the victim (Glaeser and Sacerdote (2003)). Other papers have studied the differences in the sentencing behavior of elected and appointed judges and regulators (Besley and Coate (2000), and Fields, Klein, and Sfridis (1997)). Our paper goes beyond the existing research by combining these literatures and focusing on the differential effect of community demographics on appointed and elected judges.

Mustard (2001) focuses on ethnic and gender disparities in sentencing at the federal level. He finds that, after controlling for most case characteristics, blacks, males, and defendants with lower levels of education and income are more likely to be incarcerated and to receive longer sentences in the federal courts. He, as most researchers, is unable to distinguish between the possibility of discrimination due to the judge's discretion from other systematic causes for the discrepancies. For example, drug laws at the federal level (and in most states) prescribe tougher sentences for crack cocaine than for powder cocaine. If blacks are more likely to be involved with crack, then they will receive systematically higher sentences without the presence of discrimination in judges or voters. Mustard (2001) does not assert that he finds discrimination due to the difficulty in separating its effects from those of unobservable characteristics.

Schazenbach (2005) uses data on federal judges, which are all appointed, to see how sentencing varies with the characteristics of the judge and the judge's district. He finds that the "judges' race and sex have little influence on prison sentences in general but do affect racial and sex disparities." His study surveys the literature on race and

sentencing. Although the effects of the judge's and the defendant's races have been examined extensively, no previous research has studied the relationship between the method of judicial selection combined with the characteristics of the jurisdiction and sentencing.

We take advantage of the variation in the judicial selection system—some judges are appointed, while others are elected—to answer these questions. An elected judge does not have the luxury to ignore the preferences of the local community. If an elected judge responds to the preferences of his electors, then one would expect the disparate treatment of minorities to decrease as the minorities' population share increases. Since the judges are elected locally, they are directly accountable to their constituents. Minority voters are likely to be more sensitive to and stronger in their opposition against discrimination against their own group, thus, the higher the percentage of voters that belong to the discriminated group, the lower the elected judge's ability to discriminate and keep his seat. But, this is a double-edged sword. If judges do not have taste for discrimination, but the majority of county electorate does, an elected judge is helpless. He will either have to discriminate or face ouster. An appointed judge may certainly discriminate, but he should be less responsive to the characteristics and preferences of the local community. This study contributes to the literature by answering whether the form of judicial selection matters to a minority defendant, where the bias in sentencing is coming from, and how the racial composition of the community affects the bias.

III Methodology and Data

The decision to incarcerate, like the decision to work, operates on two margins: first there is the decision on whether to incarcerate, followed by the decision on for how long. The estimation strategy will follow that pioneered by Heckman (1976) in the

context of the work decision. The first-stage regression estimates the incarceration decision:

$$(1) \quad incarceration_{ijt} = \beta X_{ijt} + \delta \text{percentage of population of defendant's race}_{jt} + \mu Z_{ijt} + \varepsilon_{ijt}$$

where the subscript i denotes a defendant facing a judge in a trial, j denotes the judicial district, and t denotes the year of the trial. The second stage estimates the following:

$$(2) \quad \text{length of sentence}_{ijt} = \alpha + \phi X_{ijt} + \theta \text{percentage of population of defendant's race}_{jt} + \tau(\hat{\lambda}) + \varepsilon_{ijt}.$$

The λ -hat is the inverse Mills ratio on the predicted probability of being incarcerated estimated from the first stage regression. The vector Z in the first stage includes additional factors that would enter into the incarceration decision but can be excluded from the sentence length estimation: whether the defendant is a fugitive, on parole, on probation, on bail, and whether the jails are overcrowded. A defendant captured when on parole, probation or bail will almost certainly be incarcerated, independently of the crime, so these factors will be good predictors in the first stage, though not necessary in the second. The β and ϕ are the coefficients on the control variables in X_{ijt} describing the case and the defendant: the gender and age of the defendant, whether the defendant is a minor, whether the defendant pleads guilty, whether the defendant has prior convictions and how many, the nature of the crime, whether the defendant was in custody when he committed the crime, who represented the defendant in court, and fixed effects for the year and state of the crime.

The coefficients of interest are δ and θ which estimate the effect of the percentage of the population of the defendant's race on the probability of incarceration and length of sentence. The political pressure on the judge to give a lighter sentence could increase as the percentage of a district's population that is of the defendant's race increases. If that is the case, both δ and θ will be positive and significant. Elected judges are directly

accountable to the population and should respond to this pressure more strongly than appointed judges, who are accountable to a legislature. To compare elected and appointed judges, both equations are estimated separately by the form of judicial selection.

We also estimate the regression separately for African Americans, for white defendants, and for all others. This allows us to estimate whether the effect of the percentage of the population is unique to African Americans, or whether it is true for all racial groups. African Americans are over-represented both in our sample and in the prison system.¹ As a result, they have a stronger interest in becoming familiar with judges and their behavior, and in punishing those judges who are unfair.

The estimation strategy requires data on case characteristics, defendant characteristics, judicial selection system, and basic demographics. The data on court cases come from the Third Inter-University Consortium for Political and Social Research (ICPSR) Edition of Bureau of Justice Statistics' dataset, *State Court Processing Statistics 1990, 1992, 1994, 1996, and 1998: Felony Defendants in Large Urban Counties*. The file contains 72,602 observations on felony defendants in 54 of the nation's 75 most populous counties. These counties account for around a third of U.S. population and about a half of all crime in the U.S. The 75 counties were divided according to the number of filings; all of the most active counties were chosen, and additional counties were chosen based on the frequency of filings. The data samples counties to accommodate the full range of variation in the frequency of filings, and the data are weighted accordingly. The data include all filings that take place in the month of May of the recorded year. The filings represent all filings for the month of May of the said year. The data include adjudication and case information, making it possible to estimate the desired models. The sentences

¹ An alternative method, using a triple interaction of African American, appointed judge, and percentage of population that is of the defendant's race generates results consistent with those presented.

are measured in months and range from zero for those not given any jail time to 1440 for those given a life sentence.

Shepherd (2002) provides demographic information for each county, which includes the number of arrests by category of crime and racial composition. The data on judicial selection come from American Judicature Society's publication titled "Judicial Selection in the States Appellate and General Jurisdiction Courts." The courts in the dataset are all general jurisdiction courts; they are criminal courts and the first ones to hear the case.

The summary statistics for the data are presented in Table 1. The number of observations used in the regressions is lower because of missing adjudication information or missing data on jail populations in Hawaii. A plurality of the defendants are black (49 percent) followed by white (37 percent). Among the remaining cases 69 percent resulted in convictions, of which 93 percent were pleaded. Only 1 percent of cases ended in an acquittal, while 27 percent of the cases were dismissed. Roughly 39 percent of defendants are incarcerated (about half of those convicted), and the average sentence is around 30 months. Counties with elected judges have higher mean population of blacks, and elected judges handle more black defendants.

IV Results

Table 2 presents regressions, separately by elected and appointed judges, for defendants of all races. The control variables show that being charged with more crimes increases the probability of incarceration, as does being older, for both elected and appointed judges. Minors and females are less likely to be incarcerated, but when incarcerated, are treated no differently. A guilty plea will increase the probability of incarceration, but will result in a lower sentence. Having no prior convictions benefits the

defendant in the first stage, with unclear results in the second. Elected and appointed judges respond differently to whether jails are overcrowded.

The variable of interest is in the first row, the percentage of the district's population that is of the defendant's race. This variable is significant, but economically meaningless, only in the first stage regression for appointed judges. There is no evidence of a relationship between the percentage of a district's population that is of a defendant's race and the length of that defendant's sentence. This result, however, could depend on the defendant's race.

Table 3 estimates the same regression in Table 2, but only for African American defendants. The variable of interest is now the percentage of the district's population that is African American. Although this variable has no effect on the probability of incarceration, the length of the sentence is reduced significantly when the district's population becomes more African American. A one percentage increase is related to a 0.435 month, or 13 day, reduction in the defendant's sentence. A one standard deviation increase in the percentage of population that is African American, 12.87 percent, is related to a substantial decrease in the defendant's sentence: 5.7 months or 168 days. This however is only the case for elected judges; appointed judges are unresponsive. These results suggest that elected judges, being more directly subject to the preferences of their district, are more likely to respond to the racial characteristics of their constituencies when facing an African American defendant. An appointed judge is not accountable to the local communities, and as a result is unresponsive to its composition.

The estimation found in African Americans need not be unique to that one sub-sample. Table 4 estimates the regressions, separately for elected and appointed judges, for only white defendants. In these regressions the percentage of the population that is white has no significant effect on the length of sentence for elected or appointed judges.

Table 5 aggregates all other racial groups and the percentage of the districts' populations that is neither African American nor white. In these regressions, the population has no significant relationship to the defendant's outcome.

V Policy Implications and Conclusion

When a black defendant faces an elected judge, being in a community where there are more blacks is negatively related to the length of his sentence. This relationship disappears when the black defendant faces an appointed judge. The fact that elected and appointed judges behave differently suggests that biased laws alone cannot explain why blacks receive longer sentences: judicial selection and population characteristics matter as well. The disparities between races in sentencing will be greatest in counties with elected judiciary and an extremely low share of blacks in county population.

If one believes that identical crimes should be given comparable sentences, the results of this study will be discouraging. Punishment clearly depends on more than the nature of the crime. These findings could be useful in guaranteeing fair trials. An African American defendant facing an elected judge in a district where the population is overwhelmingly not African American could use these results to justify his request of a change of venue. Areas where African Americans are the minority could also consider selecting their judges through appointment, rather than elections, to decrease the probability of race affecting the outcome.

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Table 1: Summary Statistics

	Elected				Appointed			
	mean	std. Dev.	min.	max	mean	std. Dev.	min.	max
demographics								
<i>percent pop. black</i>	22.39	12.87	1.83	53.39	17.65	15.24	0.82	66.61
<i>percent pop. white</i>	61.09	17.19	18.73	91.63	63.99	18.97	18.73	95.41
arrest charge								
<i>murder</i>	0.005	0.071	0	1	0.007	0.085	0	1
<i>rape</i>	0.015	0.120	0	1	0.015	0.123	0	1
<i>robbery</i>	0.075	0.263	0	1	0.075	0.263	0	1
<i>assault</i>	0.118	0.323	0	1	0.124	0.330	0	1
<i>oth. violent</i>	0.039	0.193	0	1	0.030	0.170	0	1
<i>burglary</i>	0.089	0.284	0	1	0.105	0.306	0	1
<i>theft</i>	0.120	0.325	0	1	0.125	0.331	0	1
<i>oth. property</i>	0.117	0.322	0	1	0.096	0.295	0	1
<i>drug traffick.</i>	0.142	0.349	0	1	0.212	0.409	0	1
<i>oth. drug</i>	0.189	0.392	0	1	0.130	0.336	0	1
<i>weapon</i>	0.033	0.179	0	1	0.031	0.172	0	1
<i>driving</i>	0.025	0.156	0	1	0.028	0.164	0	1
<i>oth. public</i>	0.033	0.179	0	1	0.022	0.147	0	1
conviction charge								
<i>murder</i>	0.002	0.049	0	1	0.004	0.059	0	1
<i>rape</i>	0.006	0.076	0	1	0.006	0.080	0	1
<i>robbery</i>	0.024	0.153	0	1	0.042	0.201	0	1
<i>assault</i>	0.022	0.148	0	1	0.054	0.227	0	1
<i>oth. violent</i>	0.017	0.131	0	1	0.023	0.151	0	1
<i>burglary</i>	0.041	0.198	0	1	0.068	0.251	0	1
<i>theft</i>	0.057	0.231	0	1	0.082	0.275	0	1
<i>oth. property</i>	0.056	0.231	0	1	0.063	0.243	0	1
<i>drug traffick</i>	0.073	0.260	0	1	0.147	0.354	0	1
<i>oth. drug</i>	0.092	0.289	0	1	0.108	0.311	0	1
<i>weapon</i>	0.018	0.134	0	1	0.026	0.161	0	1
<i>driving</i>	0.014	0.119	0	1	0.022	0.147	0	1
<i>oth. public</i>	0.015	0.120	0	1	0.016	0.124	0	1
<i>unkwn. fel.</i>	0.002	0.041	0	1	0.005	0.069	0	1
race of the defendant								
<i>white</i>	0.341	0.474	0	1	0.406	0.491	0	1
<i>black</i>	0.522	0.500	0	1	0.443	0.497	0	1
<i>hispanic</i>	0.180	0.384	0	1	0.224	0.417	0	1
<i>asian</i>	0.011	0.104	0	1	0.019	0.135	0	1
<i>other</i>	0.003	0.057	0	1	0.005	0.071	0	1
<i>N</i>	30,184				30,812			

Table 2: All defendants

	<i>Elected Judges</i>		<i>Appointed Judges</i>	
	<i>Stage 1</i>	<i>Stage 2</i>	<i>Stage 1</i>	<i>Stage 2</i>
	<i>Incarceration</i>	<i>Length of Sentence</i>	<i>Incarceration</i>	<i>Length of Sentence</i>
<i>% of district of defendant's race</i>	0 (0.15)	0.011 (0.41)	-0.001 (5.92)**	0.005 (0.15)
<i>Number of charges</i>	0.016 (5.35)**	1.724 (3.15)**	0.015 (5.85)**	1.689 (2.60)**
<i>Age</i>	0.011 (4.77)**	0.072 (0.19)	0.01 (4.78)**	0.298 (0.42)
<i>Age squared</i>	0 (5.01)**	0 (0.06)	0 (4.79)**	-0.001 (0.12)
<i>Under 18</i>	-0.053 (2.38)*	-0.317 (0.05)	-0.095 (4.04)**	-1.437 (0.25)
<i>Female</i>	-0.069 (6.10)**	-1.708 (1.41)	-0.064 (7.08)**	-2.191 (1.92)
<i>Pleaded Guilty</i>	0.549 (60.98)**	-53.113 (7.53)**	0.446 (38.77)**	-60.136 (7.08)**
<i>No prior convictions</i>	-0.167 (13.00)**	0.311 (0.14)	-0.165 (15.97)**	-4.885 (2.89)**
<i>Jails overcrowded</i>	-0.149 (7.36)**		0.146 (6.60)**	
<i>On probation</i>	0.081 (7.27)**		0.076 (6.65)**	
<i>On parole</i>	0.13 (8.02)**		0.14 (7.71)**	
<i>Arrested on Bail</i>	0.043 (3.10)**		0.05 (3.57)**	
<i>Fugitive</i>	0.15 (6.75)**		0.031 (1.16)	
<i>Constant</i>		95.996 (5.14)**		100.619 (4.32)**
<i>Observations</i>	27,242	26,323	29,088	28,194

Includes controls for the crime, legal representation, state, and year of crime

Robust z statistics in parentheses

* significant at 5%; ** significant at

1%

Table 3: African American defendants

	<i>Elected Judges</i>		<i>Appointed Judges</i>	
	<i>Stage 1</i>	<i>Stage 2</i>	<i>Stage 1</i>	<i>Stage 2</i>
	<i>Incarceration</i>	<i>Length of Sentence</i>	<i>Incarceration</i>	<i>Length of Sentence</i>
<i>% of district</i>	0	-0.435	0.001	-0.145
<i>African American</i>	(0.55)	(3.51)**	(0.95)	(0.77)
<i>Number of charges</i>	0.017	1.341	0.021	2.066
	(3.93)**	(1.62)	(5.17)**	(1.79)
<i>Age</i>	0.013	0.02	0.012	0.904
	(4.28)**	(0.03)	(3.62)**	(1.28)
<i>Age squared</i>	0	0.001	0	-0.015
	(4.31)**	(0.14)	(3.29)**	(1.68)
<i>Under 18</i>	-0.008	1.723	-0.084	-11.004
	(0.30)	(0.18)	(2.66)**	(1.34)
<i>Female</i>	-0.085	-0.297	-0.091	-3.355
	(5.06)**	(0.11)	(5.68)**	(1.30)
<i>Pleaded Guilty</i>	0.51	-65.958	0.485	-56.254
	(42.60)**	(6.04)**	(30.92)**	(5.14)**
<i>No prior convictions</i>	-0.168	6.548	-0.177	-2.012
	(10.43)**	(1.74)	(12.24)**	(0.73)
<i>Jails overcrowded</i>	-0.127		0.162	
	(4.22)**		(4.84)**	
<i>On probation</i>	0.09		0.068	
	(5.96)**		(4.18)**	
<i>On parole</i>	0.129		0.135	
	(6.54)**		(5.66)**	
<i>Arrested on Bail</i>	0.035		0.02	
	(2.06)*		(1.10)	
<i>Fugitive</i>	0.164		0.027	
	(6.25)**		(0.77)	
<i>Constant</i>		122.266		74.61
		(5.08)**		(3.28)**
<i>Observations</i>	14,784	14,243	13,466	13,012

Includes controls for the crime, legal representation, state, and year of crime

Robust z statistics in parentheses

* significant at 5%; ** significant at 1%

Table 4: White defendants

	<i>Elected Judges</i>		<i>Appointed Judges</i>	
	<i>Stage 1</i>	<i>Stage 2</i>	<i>Stage 1</i>	<i>Stage 2</i>
	<i>Incarceration</i>	<i>Length of Sentence</i>	<i>Incarceration</i>	<i>Length of Sentence</i>
<i>% of district of</i>	0.001	-0.106	-0.002	0.293
<i>White</i>	(2.13)*	(1.19)	(4.28)**	(1.91)
<i>Number of charges</i>	0.013	2.295	0.009	2.81
	(2.78)**	(2.37)*	(3.11)**	(2.15)*
<i>Age</i>	0.01	-0.514	0.008	1.215
	(2.88)**	(0.77)	(2.62)**	(1.37)
<i>Age squared</i>	0	0.007	0	-0.014
	(3.12)**	(0.73)	(2.83)**	(1.01)
<i>Under 18</i>	-0.121	-0.616	-0.086	13.576
	(3.07)**	(0.06)	(2.17)*	(1.56)
<i>Female</i>	-0.045	-3.601	-0.044	-1.218
	(2.69)**	(3.25)**	(3.71)**	(0.81)
<i>Pleaded Guilty</i>	0.565	-36.468	0.368	-61.625
	(37.00)**	(3.85)**	(20.54)**	(4.55)**
<i>No prior convictions</i>	-0.159	-5.022	-0.137	-3.976
	(7.59)**	(1.46)	(8.41)**	(1.54)
<i>Jails overcrowded</i>	-0.172		0.176	
	(5.43)**		(5.30)**	
<i>On probation</i>	0.063		0.09	
	(3.40)**		(4.99)**	
<i>On parole</i>	0.175		0.175	
	(5.60)**		(5.46)**	
<i>Arrested on Bail</i>	0.083		0.072	
	(3.32)**		(3.00)**	
<i>Fugitive</i>	0.13		0.023	
	(2.99)**		(0.53)	
<i>Constant</i>		121.802		-0.466
		(2.37)*		(0.02)
<i>Observations</i>	9,622	9,357	11,935	11,599

Includes controls for the crime, legal representation, state, and year of crime

Robust z statistics in parentheses

* significant at 5%; ** significant at 1%

Table 5: All other defendants

	<i>Elected Judges</i>		<i>Appointed Judges</i>	
	<i>Stage 1</i>	<i>Stage 2</i>	<i>Stage 1</i>	<i>Stage 2</i>
	<i>Incarceration</i>	<i>Length of Sentence</i>	<i>Incarceration</i>	<i>Length of Sentence</i>
<i>% of district of other</i>	-0.001 (0.48)	-0.003 (0.05)	-0.002 (1.72)	0.037 (0.13)
<i>Number of charges</i>	0.015 (1.82)	0.372 (1.01)	0.016 (2.93)**	0.201 (0.30)
<i>Age</i>	0.004 (0.76)	0.725 (3.05)**	0.01 (2.03)*	-1.046 (0.50)
<i>Age squared</i>	0 (0.80)	-0.009 (2.89)**	0 (2.38)*	0.024 (0.70)
<i>Under 18</i>	-0.024 (0.34)	5.953 (0.77)	-0.168 (2.59)**	-5.749 (0.71)
<i>Female</i>	0.009 (0.40)	-0.931 (0.93)	-0.035 (2.69)**	-4.859 (2.56)*
<i>Pleaded Guilty</i>	0.699 (23.33)**	-10.319 (1.27)	0.533 (15.34)**	-76.289 (2.68)**
<i>No prior convictions</i>	-0.157 (4.01)**	-2.902 (2.27)*	-0.154 (5.51)**	-11.289 (2.56)*
<i>Jails overcrowded</i>	0.091 (2.84)**		0.084 (3.04)**	
<i>On probation</i>	0.053 (1.00)		0.086 (1.90)	
<i>On parole</i>	0.064 (1.13)		0.129 (3.10)**	
<i>Arrested on Bail</i>	0.135 (1.40)		0.084 (1.06)	
<i>Fugitive</i>	-0.102 (1.87)		0.029 (0.50)	
<i>Constant</i>		-14.214 (1.77)		124.782 (2.04)*
<i>Observations</i>	3,752	2,723	4,207	4,096

Includes controls for the crime, legal representation, state, and year of crime

Robust z statistics in parentheses

* significant at 5%; ** significant at 1%